

Under international law, foreign governments are entitled to invoke sovereign immunity on state-owned or operated vessels arriving into Australian territory. Whenever the claim of sovereign immunity is invoked, biosecurity officers are not permitted to board sovereign immune vessels to conduct inspections or other official activities. Biosecurity officers will continue to carry out biosecurity functions under the Biosecurity Act 2015 without boarding the vessel.

While biosecurity officers are not to board a vessel that has invoked sovereign immunity, the vessel, its crew, passengers and goods are still subject to biosecurity control and must still meet Australian biosecurity requirements. The process for managing them are set out below.

Vessel operator to comply with all Australian biosecurity requirements

The claim of sovereign immunity does not exempt the vessel operator from meeting all Australian biosecurity requirements. The commanding officer (vessel master) of the vessel must ensure these requirements are met, including:

- submitting a pre-arrival report (PAR) in the Maritime Arrivals Reporting System (MARS) between 96 to 12 hours prior to arrival
- submitting a [Ballast Water Report](#) and other appropriate vessel papers (for example, Certificate of Freedom from Gypsy Moth and Ship Sanitation Certificate) to a biosecurity officer upon arrival at the port briefing.

The biosecurity risk posed by the vessel will be assessed based on the information provided in the PAR to determine any conditions and/or measures to be placed on the vessel (for example, whether or not the vessel has the department's permission to discharge ballast water).

The vessel will be issued a Biosecurity Status Document, informing the commanding officer (vessel master) of the department's requirements regarding pratique, waste removal and biosecurity intervention of the crew and passengers that will occur wharf side during the vessel's stay in port.

The vessel's agent should discuss the vessel's sovereign immunity requirements with biosecurity officers prior to a vessel's arrival.

For details on the MNCC's operating hours and contact details, see the [Vessels webpage](#). For out of MNCC hours, contact the department's local port where the vessel will be arriving. See [Vessel Contacts](#).

Sovereign immunity declaration

The commanding officer (vessel master) of each vessel claiming sovereign immunity must declare to the department on arrival:

- whether the galley areas and dry stores are hygienic and free of infestations
- whether waste is stored appropriately (in bags/bins and not exposed)

- whether there are any dry stores on the vessel from the countries listed as being at risk from Trogoderma species (as per the department's [Biosecurity Import Conditions system \(BICON\)](#) case for raw seed, or see [Khapra beetle](#), and
- that crew are aware of the department's requirements to not remove any food products, plant or animal material from the vessel and that targeted gangway watches of the vessel may occur.

The declaration must be in writing, and should be submitted by the commanding officer (vessel master) by email to the [MNCC](#).

Biosecurity waste bins used by vessels at all intended ports of call

Sovereign immune vessels, or their Australian agents, are required to provide adequate biosecurity waste bins at all Australian ports where the vessel intends to visit.

Biosecurity officers are not responsible for the collection and disposal of biosecurity risk material. It is the commanding officer's (vessel master's) responsibility to ensure that the waste is disposed of by a service provider on an approved arrangement with the department.

Treatment of biosecurity waste coming off the vessel

As biosecurity officers cannot inspect the vessel to determine the disease/pest status of the galley and provision areas, all waste being removed from the vessel must be treated as a biosecurity risk, and managed in accordance with the department's requirements, taking into account specific port capabilities and infrastructure.

Biosecurity officers must supervise the removal of all waste from the vessel to barge (if applicable), and to the wharf side collection point. In circumstances whereby a vessel is at anchor and a barge is used to transfer waste to shore and where front-loading lift bin type receptacles are used, receptacles must be lockable and be kept locked during transfer. All waste must be double bagged prior to being removed from the vessel.

If crew intend to remove waste, a biosecurity officer must supervise the removal of the waste.

Where the integrity of the receptacles has been compromised or there is an identifiable risk such as:

- non-cosmopolitan insects or insects of an unknown species are sighted on or near waste
- waste not being doubled bagged
- bags containing waste are damaged
- the vessel having a history of insect related problems, for example Trogoderma,

the following treatment will apply:

- The waste will be sprayed with an insecticide aerosol spray. Spray will be applied to the top of the waste and all external and internal surfaces of the receptacle. For very large volumes of waste the

vessel's master will be directed to use industrial style spraying devices in lieu of a pressure pack spray and/or engage a pest controller to undertake required treatment.

- If a biosecurity pest is identified, a biosecurity officer will direct the vessel to cease the further removal of waste pending treatment of landed waste in an approved manner, such as fumigation.

All costs associated with the treatment and/or destruction of any biosecurity waste being removed from the vessel will be at the expense of the vessel or its Australian agent.

Increased gangway watch of disembarking crew

While the vessel is in port, any baggage carried off the vessel by officers, crew and/or visitors to the vessel will be subject to biosecurity intervention at the point of disembarkation from the gangway.

Any non-compliance with biosecurity requirements will result in increased mandatory gangway watches and monitoring by the department for the duration of the vessel's stay in port.

All costs associated with the intervention of disembarking officers, crew and/or visitors will be borne by the vessel or its Australian agent.

Changes to the health of crew, passengers or visitors

The vessel's commanding officer (vessel master) must report any change to the health status of persons on board the vessel, including crew, passengers or visitors, for the duration of the vessel's stay in port. The report can be made by contacting the MNCC or the department's local office where the vessel is in port.

For details on the MNCC's operating hours and contact details, see the [Vessels webpage](#). For out of MNCC hours, contact the department's local port where the vessel will be arriving. See [Vessel Contacts](#).

Further information

Further information relating to Australia's biosecurity requirements for aircraft, vessels and military can be obtained by visiting the [aircraft, vessels and military](#) web page on the department's website.

Source: <https://www.agriculture.gov.au/biosecurity-trade/aircraft-vessels-military/military/visiting-military/vessels-invoking-sovereign-immunity>